

Defendant's inaction, from which an inference can be drawn that the breach was a substantial cause of Plaintiff's injuries. (See, Plaintiff's Additional Material Facts ("AMFs") 19-27 and evidence cited therein.)

Through admissible evidence, Plaintiff has met his burden of creating a triable issue of material fact as to the elements of negligence.

As to the motion for summary adjudication, as Plaintiff has sufficiently established the elements of negligence, Defendant's Issue 1 has been controverted and the motion for summary adjudication as to that issue is DENIED.

As to Defendant's Issue 2, Plaintiff has provided admissible evidence by way of Dr. Shakeshaft's declaration sufficient to create a triable issue of material fact as to the elements for negligent hiring, supervision, or retention. Plaintiff has supported with admissible evidence the following allegations: Plumskey was an employee of Defendant; the actions of Plumskey made him unfit for his position; Defendant should have known Plumskey was unfit; Plumskey's actions harmed Plaintiff; and Defendant's negligence in supervising or retaining Plumskey was a substantial factor in causing Plaintiff's injuries. (See, Plaintiff's UMF 2, AMFs 19-27, and evidence cited therein.) Defendant's motion for summary adjudication as to Issue 2 regarding Plaintiff's cause of action for negligent hiring, supervision, or retention of employee cause of action is DENIED.

24CV-01782

Lillian Oliver vs Auto Resources Inc., et al.

Motion for Continuance of Action by Successor in Interest of Plaintiff's Estate

The motion for continuance of action by successor in interest Shon Oliver is GRANTED.

The court finds the statutory requirements have been met and that there is no objection to Oliver being substituted as successor in interest for the deceased.

The court will sign the order lodged with the court on May 18, 2026.

25CV-02701

Etelvino Delgado vs Cal Pro Farm Labor Inc

Status Conference

CONTINUED to trail the pending motion to be relieved as counsel currently set for June 11, 2026, at 8:15 a.m. in Courtroom 8.

26CV-00184

Taofeek Quadri vs Vannak Sao

Case Management Conference – Special Set

Appearance required.